

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS CHAPTERS AND SECTIONS CONTAINED WITHIN TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, PERTAINING TO NOTARIZATION OF APPLICANT SIGNATURES.”

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various chapters and sections contained within Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance. Chapters and sections currently existing within Title 5, Business Licenses and Regulations, not set out or clarified by an *[Editing note: ...]* within this ordinance remain unchanged.

5.52.050 Application for massage therapist permit.

A. Initial Application. Initial application for a massage therapist permit must be made to the city clerk in the same manner as provided for a massage business establishment license, accompanied by the annual nonrefundable massage therapist permit fee of one hundred fifteen dollars (\$115.00). The application must contain, but may not be limited to, the following information:

14. Written declaration by the applicant, under penalty of perjury, that the information contained within the application is true and correct, ~~such declaration being signed and dated before a licensed notary public or person authorized by law to administer oaths;~~

5.72.030 Business license required.

B. An application for a public transportation business license must contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

8. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010 (C) of the city code. Each application shall be signed by the applicant ~~in the present of a licensed notary public. Each~~ **AND THE** applicant shall verify, that the statements contained in the application are true and correct. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information.

5.72.050 Public transportation driver's permit required.

B. An application for a public transportation driver's permit must contain the following information, and such other information and supporting documentation as requested by the chief of police:

7. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010 (C) of the city code. Each application shall be signed by the applicant ~~in the presence of a licensed notary public. Each~~ **AND THE** applicant shall verify that the statements contained in the application are true and correct. The chief of police may recommend the disapproval of any application that contains false, misleading, or incomplete information.

5.76.030 Temporary or transient merchant – Comprehensive – License required – Application.

B. Persons desiring a temporary or transient merchant business license, including an annual comprehensive temporary or transient merchant license, must submit written application on forms provided by the city clerk, together with payment of the licensing fee, to the office of city clerk. Each application shall be signed by the applicant ~~in front of a notary public and notarized by same.~~

[Editing note: Remainder of existing city code sub-section 5.76.030 (B) is unchanged.]

5.76.040 Residential door-to-door solicitors – License and License identification badge required – Application.

B. Persons desiring a residential door-to-door solicitors business license must submit a written application on forms provided by the city clerk, together with payment of the business license fee and license identification badge fee, to the office city clerk. Each application shall be signed by the applicant ~~in front of a notary public and notarized by same.~~

[Editing note: Remainder of existing city code sub-section 5.76.040 (B) is unchanged.]

5.78.030 Business license required.

B. Any person desiring to conduct, maintain, or operate a towing/recovery operation within the city must first obtain a business license by submitting to the city clerk an application, together with a non-refundable annual license fee, on forms provided by the city clerk.

[Editing note: Remainder of existing city code sub-section 5.78.030 (B) is unchanged with the exception of sub-section (B) (6) below.]

6. Affirmation that the information contained in and submitted with the application form is complete, true and correct. Each application must be signed by the applicant ~~in the presence of a licensed notary public.~~

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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